Safety Memo

October 11, 2022

To: All Terminal Managers, Managers, Salesmen, Dispatchers, Drivers and Safety Personnel

From: Manuel Ortega, Director of Safety

RE: Hours of Service – Motor Carrier Responsibilities

49 CFR **§395.3 Maximum driving time for property-carrying vehicles states that no motor carrier shall permit or require any driver to drive a property carrying commercial motor vehicle unless they comply with the requirements of the Hours of Service Regulations (see attachment 1).**
Rig Runner is committed to operate within all Federal, State and Local regulations that apply to a property carrying motor carrier, not only to comply but also to do our part in making all streets, roads and highways safe for everyone that travels on them.

Anyone that dispatches a truck for Rig Runner is responsible for knowing if the driver being dispatched has adequate hours left to complete the load and stay within the Hours of Service Regulation requirements. Any driver accepting a load must know whether or not they are rested and have adequate hours to complete the load and stay within the Hours of Service Regulations.

Question: Under what circumstances may a driver operate a commercial motor vehicle (CMV) as a personal conveyance?

A driver may record time operating a CMV for personal conveyance (i.e., for personal use or reasons) as off-duty only when the driver is relieved from work and all responsibility for performing work by the motor carrier. Any work time cannot be logged as personal conveyance! (see attachment 2)

Rig Runner expects everyone to comply with the Hours of Service regulations and work in a manner that ensures no fatigued drivers are on the road at any time. Whether using and ELD, paper log or time sheet, the applicable regulations are to be complied with. I have attached examples of some outcomes where motor carriers, dispatchers and others failed to comply (see attachment 3).

By signing below you affirm that you understand and are committed to comply with the requirements of the Hours of Service Regulations.

Manuel Ortega,



Rig Runner
Director of Safety

Signature _____ Date _____

Printed Name _____

ATTACHMENT 1

§395.3 Maximum driving time for property-carrying vehicles.

(a) Except as otherwise provided in §395.1, no motor carrier shall permit or require any driver used by it to drive a property-carrying commercial motor vehicle, nor shall any such driver drive a property-carrying commercial motor vehicle, regardless of the number of motor carriers using the driver's services, unless the driver complies with the following requirements:

(1) *Start of work shift.* A driver may not drive without first taking 10 consecutive hours off duty;

(2) *14-hour period.* A driver may drive only during a period of 14 consecutive hours after coming on duty following 10 consecutive hours off duty. The driver may not drive after the end of the 14-consecutive-hour period without first taking 10 consecutive hours off duty.

(3) *Driving time and rest breaks.* (i) *Driving time.* A driver may drive a total of 11 hours during the 14-hour period specified in paragraph (a)(2) of this section.

(ii) *Rest breaks.* Except for drivers who qualify for either of the short-haul exceptions in §395.1(e)(1) or (2), driving is not permitted if more than 8 hours have passed since the end of the driver's last off-duty or sleeper-berth period of at least 30 minutes.

(b) No motor carrier shall permit or require a driver of a property-carrying commercial motor vehicle to drive, nor shall any driver drive a property-carrying commercial motor vehicle, regardless of the number of motor carriers using the driver's services, for any period after—

(1) Having been on duty 60 hours in any period of 7 consecutive days if the employing motor carrier does not operate commercial motor vehicles every day of the week; or

(2) Having been on duty 70 hours in any period of 8 consecutive days if the employing motor carrier operates commercial motor vehicles every day of the week.

(c)(1) Any period of 7 consecutive days may end with the beginning of an off-duty period of 34 or more consecutive hours that includes two periods from 1:00 a.m. to 5:00 a.m.

(2) Any period of 8 consecutive days may end with the beginning of an off-duty period of 34 or more consecutive hours that includes two periods from 1:00 a.m. to 5:00 a.m.

(d) A driver may not take an off-duty period allowed by paragraph (c) of this section to restart the calculation of 60 hours in 7 consecutive days or 70 hours in 8 consecutive days until 168 or more consecutive hours have passed since the beginning of the last such off-duty period. When a driver takes more than one off-duty period of 34 or more consecutive hours within a period of 168 consecutive hours, he or she must indicate in the Remarks section of the record of duty status which such off-duty period is being used to restart the calculation of 60 hours in 7 consecutive days or 70 hours in 8 consecutive days.

[76 FR 81188, Dec. 27, 2011, as amended at 78 FR 58485, Sept. 24, 2013; 78 FR 64181, Oct. 28, 2013]

FMCSA
Federal Motor Carrier Safety Administration

Personal Conveyance

Personal conveyance is the movement of a commercial motor vehicle (CMV) for personal use while off-duty. A driver may record time operating a CMV for personal conveyance as off-duty only when the driver is relieved from work and all responsibility for performing work by the motor carrier. The CMV may be used for personal conveyance even if it is laden, since the load is not being transported for the commercial benefit of the motor carrier at that time. Personal conveyance does not reduce a driver's or motor carrier's responsibility to operate a CMV safely. Motor carriers can establish personal conveyance limitations either within the scope of, or more restrictive than, the guidance provided here.

FMCSA updates the guidance for § 395.8 Driver's Record of Duty Status to read as follows:

Question 26: Under what circumstances may a driver operate a commercial motor vehicle (CMV) as a personal conveyance?

Guidance: A driver may record time operating a CMV for personal conveyance (i.e., for personal use or reasons) as off-duty only when the driver is relieved from work and all responsibility for performing work by the motor carrier. The CMV may be used for personal conveyance even if it is laden, since the load is not being transported for the commercial benefit of the carrier at that time. Personal conveyance does not reduce a driver's or motor carrier's responsibility to operate a CMV safely. Motor carriers can establish personal conveyance limitations either within the scope of, or more restrictive than, this guidance, such as banning use of a CMV for personal conveyance purposes, imposing a distance limitation on personal conveyance, or prohibiting personal conveyance while the CMV is laden.

Examples of Appropriate Uses of a CMV While Off-duty for Personal Conveyance

The following are examples of appropriate uses of a CMV while off-duty for personal conveyance include, but are not limited to:

1. Time spent traveling from a driver's en route lodging (such as a motel or truck stop) to restaurants and entertainment facilities.

2. Commuting between the driver's terminal and his or her residence, between trailer-drop lots and the driver's residence, and between work sites and his or her residence. In these scenarios, the commuting distance combined with the release from work and start to work times must allow the driver enough time to obtain the required restorative rest as to ensure the driver is not fatigued.
3. Time spent traveling to a nearby, reasonable, safe location to obtain required rest after loading or unloading. The time driving under personal conveyance must allow the driver adequate time to obtain the required rest in accordance with minimum off-duty periods under 49 CFR 395.3(a)(1) (property-carrying vehicles) or 395.5(a) (passenger-carrying vehicles) before returning to on-duty driving, and the resting location must be the first such location reasonably available.
4. Moving a CMV at the request of a safety official during the driver's off-duty time
5. Time spent traveling in a motorcoach without passengers to en route lodging (such as motel or truck stop), or to restaurants and entertainment facilities and back to the lodging. In this scenario, the driver of the motorcoach can claim personal conveyance provided the driver is off-duty. Other off-duty drivers may be on board the vehicle, and are not considered passengers.
6. Time spent transporting personal property while off-duty.
7. Authorized use of a CMV to travel home after working at an offsite location.

Examples of Uses of a CMV that Would Not Qualify as Personal Conveyance

The following are examples of uses of a CMV that would not qualify as personal conveyance include, but are not limited to, the following:

1. The movement of a CMV in order to enhance the operational readiness of a motor carrier. For example, bypassing available resting locations in order to get closer to the next loading or unloading point or other scheduled motor carrier destination.
2. After delivering a towed unit, and the towing unit no longer meets the definition of a CMV, the driver returns to the point of origin under the direction of the motor carrier to pick up another towed unit.
3. Continuation of a CMV trip in interstate commerce in order to fulfill a business purpose, including bobtailing or operating with an empty trailer in order to retrieve another load or repositioning a CMV (tractor or trailer) at the direction of the motor carrier.
4. Time spent driving a passenger-carrying CMV while passenger(s) are on board. Off-duty drivers are not considered passengers when traveling to a common destination of their own choice within the scope of this guidance.
5. Time spent transporting a CMV to a facility to have vehicle maintenance performed.
6. After being placed out of service for exceeding the maximum periods permitted under part 395, time spent driving to a location to obtain required rest, unless so directed by an enforcement officer at the scene.
7. Time spent traveling to a motor carrier's terminal after loading or unloading from a shipper or a receiver.
8. Time spent operating a motorcoach when luggage is stowed, the passengers have disembarked and the driver has been directed to deliver the luggage.

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ATTACHMENT 3

March 14, 2006

Former Owner and Dispatcher for Pennsylvania Trucking Company Sentenced in Logbook Falsification Case

A U.S. District Court judge in Williamsport, PA sentenced Ronald Wolf, the former owner/operator of RBL Enterprises, Inc. (RBL), Port Treverton, PA, on March 14 and Kenneth Heneisen, an RBL driver/dispatcher, on March 10 for misprision of a felony related to falsification of commercial truck drivers' logbooks. Wolf was sentenced to three years probation and a $2,500 fine, and Heneisen was sentenced with two years probation. Both men admitted to aiding and abetting the falsification of commercial truck drivers' logbooks on a daily basis between 2001 and 2004, thereby causing RBL drivers to exceed the maximum daily driving hours prescribed by law and FMCSA regulation. Wolf also admitted to instructing RBL drivers to destroy supporting documents that contradicted the false logbooks. A primary objective of the FMCSA 'hours-of-service' regulation is to promote public safety through reducing the risk of fatigue-related commercial vehicle accidents. Eight other RBL drivers have been sentenced on related charges. RBL is no longer in business. The investigation was conducted jointly with FMCSA.

January 18, 2006

Former Executive, Dispatcher, and Two Drivers of Virginia Trucking Company Sentenced for Their Roles in Falsifying Drivers' Logbooks

Sentenced for Their Roles in Falsifying Drivers' Logbooks

On January 18, a U.S. District Court judge in Lynchburg VA ordered Norvell Preston, former president of K&C Trucking Co., Inc. (K&C), Rustburg, VA to pay a $10,000 fine and serve 30 days in jail for his role in falsifying driver logbooks to conceal violations of FMCSA 'hours-of-service' regulations. Dispatcher David Martin was fined $3,400 and was placed on three months home confinement. Former K&C drivers Harold Burnett and Grover Adkins were fined $2,000 and $500 respectively by the same judge on January 18, and five other former K&C drivers were sentenced in November 2005 to home confinement or to fines ranging from $500 to $1,500 each. All those sentenced had previously pled guilty to charges of false statements and/or conspiracy related to the logbook falsifications. FMCSA assisted with this investigation.

ATTACHMENT 3

March 25, 2002

Trucking Company Dispatcher Fined in Hours-of-Service Case

Gary Chamberlain, the chief dispatcher and a driver for Northern Gas Transport, Inc. (NGT), of Lyndonville, VT, was fined $1,000 by a U.S. District Court judge in Burlington, VT, for helping NGT conceal records which disclosed that NGT drivers were driving in excess of hours permitted. As a truck driver, Chamberlain falsified his own logs and as dispatcher, forced drivers to drive beyond the permissible time limits. The remaining defendants in this case, NGT and two of its other officials, will be sentenced April 19, 2002.

April 19, 2002

Northern Gas Transport Fined $75,000, Given 5 Years Probation in Hours-of-Service Scheme

Northern Gas Transport, Inc. (NGT) of Lyndonville, VT, a hauler of propane gas and other hazardous and volatile materials, was fined $75,000 and given 5 years probation by a U.S. District Court judge in Rutland, VT, for falsifying drivers' logs and obstruction of justice. NGT president Bruce Grant was fined $5,000 fine and placed on 2 years probation on the same charges for systemically requiring NGT truckers to drive more than the number of hours permitted by Federal regulations and for hiding documents showing that NGT regularly omitted trips from drivers' logs. NGT's Safety Manager, Bradley Grant, received 2 years probation for concealing documents during the course of a FMCSA compliance review. Last month NGT Dispatcher Gary Chamberlain was fined $1,000 on related charges. The case was investigated by the OIG, with assistance from FMCSA.

ATTACHMENT 3

November 28, 2017

Virginia Trucking Companies and Four Corporate Officers Sentenced for Violating FMCSA Safety Regulations

USAO, Western District of Virginia - Press Release

On November 28, 2017, Beam Bros Trucking, Inc. (BBT) and Beam Bros Holding Corporation LLC (Beam Holding) were sentenced in U.S. District Court, Harrisonburg, Virginia, and ordered to pay $3.25 million, which includes a $2 million forfeiture, a $250,000 fine, and approximately $1 million in restitution to drivers defrauded of their pay. Gerald Beam, president and chief executive officer, and Garland Beam, vice president, were both sentenced to a 6-month home confinement, 2 years of probation, 100 hours of community service, and a $5,000 fine. Shaun Beam, operations manager, and Nickolas Kozel, chief financial officer, were sentenced to a 3-month home confinement, 2 years of probation, 100 hours of community service, and a $2,000 fine.

On May 16, 2017, BBT and Beam Holding pleaded guilty to conspiracy to commit wire fraud and conspiracy to commit an offense against the United States. Specifically, they were charged with falsification of records in contemplation of a Federal matter, which include drivers' records of duty status (RODs) and timesheets. Gerald Beam, Garland Beam, Shaun Beam, and Nickolas Kozel each pleaded guilty to a misdemeanor charge of conspiracy to commit an offense against the United States, i.e., that they knowingly violated FMCSA's highway safety regulations.

BBT was one of the Nation's largest contract carriers of mail for the U.S. Postal Service (USPS). Over the last 10 years, USPS paid BBT more than $500 million. Between 1999 and 2017, BBT knowingly encouraged, permitted, caused, or required BBT drivers to make trips in violation of FMCSA safety regulations designed to prevent commercial motor vehicle crashes caused by fatigued drivers. Those violations included creating routes that could not be completed within the hours of service (HOS) regulations and causing drivers to falsely record their duty statuses. FMCSA conducted five previous compliance investigations; in two of them, enforcement action was taken and a civil fine was assessed due to hours-of-service violations that endangered the traveling public.

DOT-OIG conducted this investigation jointly with the Department of Labor OIG, USPS-OIG, and Internal Revenue Service Criminal Investigation, and with assistance from FMCSA.

ATTACHMENT 3

January 17, 2014

Connecticut Company Sentenced in Falsification of Logbooks Scheme

On January 17, 2014, Wisla Express, LLC (Wisla), New Britain, Connecticut, was sentenced in United States District Court, Hartford, Connecticut, to 5 years' probation and a $75,000 fine in connection with its role in presenting falsified documents to the Federal Motor Carrier Safety Administration (FMCSA). Wisla's owner Elzbieta Szteborowski and manager Dariusz Szteborowski were ordered to divest themselves of all ownership interests in Wisla and may not reacquire any ownership interests during the duration of Wisla's probation. Dariusz Szteborowski is not permitted to work for Wisla during the probation period.

Wisla is a commercial passenger carrier operating vans, mini-buses, and tour buses. Wisla's office Manager, Dariusz Szteborowski, of Rocky Hill, Connecticut, previously entered a guilty plea in connection with the scheme.

The investigation disclosed that Szteborowski created and maintained false and fraudulent driver time records or caused others to create false and fraudulent driver logs in order to meet the prescribed reporting requirements. Szteborowski and others working with and for Szteborowski and Wisla often assigned drivers to trips knowing that the drivers would be exceeding the regulated limits of on-duty driving time. In order to hide these violations from FMCSA inspectors, Szteborowski instructed the drivers and/or other Wisla employees to record falsely in the logs that the driver was off-duty during those times, and then Szteborowski submitted the falsified logs to FMCSA during its inspection.

The investigation was conducted with assistance from FMCSA.

ATTACHMENT 3

February 3, 2011

Federal Charges in Fraudulent Driver's Logbook Case Involving Fatality

On February 3, 2011, a federal grand jury in Philadelphia, Pennsylvania, indicted Valerjis Belovs and charged him with 15-counts of making false statements to the U.S. Department of Transportation. The indictment alleges that Mr. Belovs falsified his driver daily logbooks to conceal the fact that he drove in excess of the allowable driving hours without the required period of rest.

The federal charges are related to a fatality accident on US-76 in Philadelphia, Pennsylvania, in which one person died and five others were seriously injured when a truck operated by Mr. Belovs plowed into stopped traffic.

Mr. Belovs previously pled guilty to various state charges including one count of vehicular homicide. OIG analysis of Mr. Belovs' regulated driver logbooks revealed that he was driving in excess of the maximum allowable hours of operating a commercial vehicle at the time of the accident. According to the indictment, Mr. Belovs made fifteen false entries in his logbooks. In one example, Mr. Belovs recorded that he was in a sleeper berth in Wyethville, Virginia, when he was actually driving in Pennsylvania.

This is a joint investigation with the Montgomery County District Attorney's Office and the Pennsylvania State Police. FMSCA assisted with the investigation.

Note: Indictments, informations, and criminal complaints are only accusations by the government, all defendants are presumed innocent unless and until proven guilty.